CASE STUDY

Murder in a Courtroom

Hans Raj Kaushik's killing in open court shook the judiciary. His family's trauma endures

Among retired civil servants in Punjab, Ravinder Kaushik, a former Punjab-cadre IAS officer, has a reputation for being a walking encyclopaedia of the bureaucracy. Colleagues marvel at his memory for dates and government orders, and joke that he knows how the Indian bureaucracy evolved better than the official archives.

Few, however, know the underlying tragedy. On February 9, 1987, Kaushik's father, Hans Raj Kaushik, the Judicial Magistrate at Moga, was shot dead by Khalistani militants as he presided over proceedings. It remains the only case in independent India of a serving judge being assassinated in open court.

Ravinder was the eldest of Hans Raj Kaushik's three sons. "I was a carefree youngster," he recalls. "I had to mature overnight." The grief was accompanied by social isolation. "Many relatives and friends stopped visiting us," he recounts.



Each brother processed it differently. His younger brother Chetan chose never to marry and spent his life looking after their widowed mother. "I served the Punjab cadre," says Ravinder, "but I never bought even a small plot of land in Punjab." The third brother, Ashok, was unable to ever accept someone could walk into a court and kill a judge in front of everyone.

The murder was widely pinned on Sikh militant groups, but no court named gunmen and no outfit was held responsible. Nearly four decades on, Ravinder talks about the assassination without bitterness. The man who knows Punjab's administrative history better than anyone is himself an inextricable, if silent, part of it. ■

Photograph by **BANDEEP SINGH**



CASE STUDY

THE BULLET LIVES ON

The 1989 militant attack on an RSS meeting in Moga killed 30 people, spread panic among Hindus

Kerala Story on its slate. The platform agreed to release it, on the condition that its title be changed. Trehan already had 'Satluj' registered with him, and he felt it could do "poetic justice" to the theme—it was into its waters that Khalra's body was allegedly thrown after police torture. Thus was born the title that would make waves, especially after the Modi government pulled the plug and banned the film, citing national security concerns.

To its credit, what the film depicts about extra-judicial killings does carry real weight. Violent-incident data for the decade shows 27 per cent of all such incidents in Punjab in just three police districts—Tarn Taran, Amritsar and Majitha. High-intensity conflict, including targeted massacres of migrant Uttar Pradesh and Bihar workers, may partly explain the high number of unidentified bodies, though not the 2,097 confirmed by a Supreme Court-ordered CBI investigation in November 1995, which is depicted accurately in the film. The National Human Rights Commission later ordered Punjab to compensate the families of the identified victims; the CBI probe led to the prosecutions of police officials in over 100 cases, resulting in convictions and jail terms. Many of those cops are still doing time.

What the film omits lends the bias charge its credibility. Khalra's 1995 exposé, as the film shows it, followed unprecedented terrorist violence that peaked in 1991, when 5,265 Punjabis—civilians, security personnel and terrorists—were killed. On June 15, 1991, alone, Khalistan Liberation Force gunmen struck two trains in Ludhiana district: 48 Hindu passengers were killed and 30 injured after being separated from Sikh co-passengers on the